

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
ORVILLE MONCRIEFFE,

Index No.

Plaintiff

-against-

CITY OF NEW YORK, P.O. RICHARD STEIN,
Tax Reg. #957191, P.O. KAITLYN ANTONELLIS,
Tax Reg. #955719, HERFA BROWN,Defendants
-----XSUMMONS

TO THE ABOVE- NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with the with this summons, to serve a Notice of Appearance on the plaintiffs' attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates County of Queens as the venue.

The basis of the venue designated by the Plaintiff is the residence of Plaintiff.

Dated: New York, New York
November 10, 2022**LAW OFFICES OF K.C. OKOLI, P.C.**

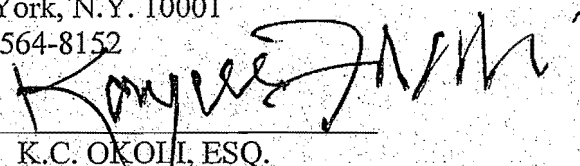
Attorneys for Plaintiff

ORVILLE MONCRIEFFE

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(212) 564-8152

By: 

K.C. OKOLI, ESQ.

FOR SERVICE ON

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Corporation Counsel, City of New York
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P.O. KAITLYN ANTONELLIS, Tax Reg. #955719
105th Precinct, NYPD
92-08 222nd Street
Queens Village, NY 11428

HERFA BROWN
116-06 226th Street
Cambria Heights, NY 11411

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Defendants

----- X **COMPLAINT**

Plaintiff, by his attorneys, LAW OFFICES OF K.C. OKOLI, P.C., complaining of the
defendants, alleges as follows:

JURISDICTION AND VENUE

1. This action is brought pursuant to the Civil Rights Acts, 42 U.S.C. §1983, for violation of the plaintiff's civil and constitutional rights, guaranteed by the Fourth Amendment to the United States Constitution, and pursuant to the common law of the State of New York for false arrest, false imprisonment, and malicious prosecution.

2. The jurisdiction of the court is invoked to secure the protection and redress the deprivation of rights guaranteed to persons by the Fourth, and Fourteenth Amendments to the Constitution of the United States.

3. Venue is proper in the County of Queens based upon the fact that the events or omissions which gave rise to the claims asserted herein occurred within the County of Queens.

PARTIES

4. At all times hereinafter mentioned, plaintiff, Orville Moncrieffe ("MONCRIEFFE"), was a resident of the County of Queens, City and State of New York.
5. Upon information and belief, at all times hereinafter mentioned, defendant the CITY OF NEW YORK (hereinafter, "CITY") is a municipal corporation established under and by virtue of the laws of the State of New York.
6. At all times hereinafter mentioned, the CITY maintained, operated, controlled and supervised a police department, the New York City Police Department (hereinafter, "NYPD").
7. At all times hereinafter mentioned, the individual defendants, P.O. Richard Stein ("STEIN") and P.O. Antonellis ("ANTONELLIS"), were law enforcement or police officers within the NYPD.
8. At all times hereinafter mentioned, the NYPD employed law enforcement officers, including the individual defendants herein, who performed law enforcement duties for and on behalf of the CITY within the CITY's territorial limits.
9. At all times hereinafter mentioned, STEIN and ANTONELLIS were acting in the course and within the scope of their employment as agents or employees of the CITY.
10. At all times hereinafter mentioned, STEIN and ANTONELLIS were acting under color of the statutes, ordinances, regulations, customs and usages of the NYPD, the CITY and State of New York, and under the authority of their respective offices.
11. At all times hereinafter mentioned, Herfa Brown ("BROWN"), was an individual who, with MONCRIEFFE, was *a record co-owner of the property* known as 116-06 226th Street, Cambria Heights, New York.
12. Plaintiff caused a notice of claim to be served upon CITY.

13. Defendant CITY has not settled or otherwise resolved the claim.

AS AND FOR A FIRST CAUSE OF ACTION (Unlawful Seizure)

14. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "13" as if fully set forth herein.

15. On or about August 9, 2019, at approximately 1:00 PM, MONCRIEFFE was lawfully present at 116-06 226th Street, Cambria Heights, New York, when ANTONELLIS forcibly seized MONCRIEFFE on a false charge of committing criminal mischief in the fourth degree relating to the property.

16. MONCRIEFFE was taken into the custody by ANTONELLIS, photographed, fingerprinted and otherwise processed.

17. Thereafter, MONCRIEFFE was arraigned before the Queens County Criminal Court with a sworn statement provided by ANTONELLIS in support of the charge of criminal mischief in the fourth degree.

18. Defendants continued to prosecute MONCRIEFFE on the aforesaid charge until December 11, 2019, when the charge was finally dismissed.

19. Upon information and belief, BROWN provided ANTONELLIS the false information on which plaintiff's unlawful seizure is based.

20. By reason of the foregoing, MONCRIEFFE has suffered loss and damage.

AS AND FOR A SECOND CAUSE OF ACTION (Unlawful Seizure)

21. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "20" as if fully set forth herein.

22. On or about September 5, 2019, MONCRIEFFE was seized by STEIN and,

thereafter, arraigned in Queens County Criminal Court on a false charge of criminal contempt in the second degree.

23. MONCRIEFFE was taken into the custody by PO Stein, photographed, fingerprinted and otherwise processed.

24. The aforesaid false charge was supported by sworn statements provided by STEIN and BROWN.

25. Without the sworn statements of STEIN and BROWN, the prosecutors would not have been able to proceed with the false charge against MONCRIEFFE.

26. Defendants continued to prosecute MONCRIEFFE on the aforesaid charge of contempt until December 11, 2019, when the charge was finally dismissed.

27. Upon information and belief, BROWN provided STEIN the false information upon which plaintiff's unlawful seizure is based.

28. By reason of the foregoing, MONCRIEFFE has suffered loss and damage.

AS AND FOR A THIRD CAUSE OF ACTION (Malicious Prosecution)

29. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "28" as if fully set forth herein.

30. Defendants instituted and/or continued the criminal prosecution of MONCRIEFFE criminal mischief in the fourth degree and criminal contempt in the second degree.

31. Defendants carried out the criminal prosecutions without any probable cause to believe that MONCRIEFFE was guilty of those charges.

32. Defendants instituted and continued the prosecutions maliciously.

33. The criminal prosecutions terminated in favour of MONCRIEFFE.

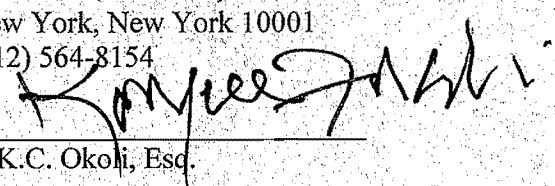
34. By reason of the foregoing, MONCRIEFFE has suffered loss and damage.
35. Plaintiff demands a jury trial for all matters triable by jury.

WHEREFORE, Plaintiff requests that the Court grant the following reliefs:

- a) On the First Cause of Action, compensatory damages in the sum of One Million Dollars (\$1,000,000.00);
- b) On the Second Cause of Action, compensatory damages in the sum of One Million Dollars (\$1,000,000.00);
- c) On the Third Cause of Action, compensatory damages in the sum of One Million Dollars (\$1,000,000.00);
- d) Punitive damages against each of the individual defendants in an amount yet to be determined.
- e) Attorney's fees;
- f) Such other or further relief, including costs, disbursements and interest, as to this Court shall seem just and proper in the circumstances.

Dated: New York, New York
November 10, 2022

LAW OFFICES OF K.C. OKOLI, P.C.
Attorneys for Plaintiff
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By: 

K.C. Okoli, Esc.

FOR SERVICE ON:

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VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss:

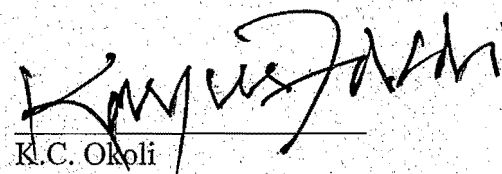
K.C. Okoli, an attorney duly admitted to practice law in the courts of the State of New York, affirms the following to be true under the penalty of perjury:

I am a member of Law Offices of K.C. Okoli, P.C., attorneys for the Plaintiff herein. I have read the foregoing COMPLAINT and know the contents thereof, and same is true to my knowledge, except as to those matters therein which are stated upon information and belief, and as to those matters I believe it to be true.

My belief as to those matters therein not stated upon my personal knowledge is based on the review of relevant documents made available to me, including court records, and my consultations with Plaintiff.

This verification is made by me and not the Plaintiff because the Plaintiff does not reside in the County of New York in which I maintain my office for the practice of law.

Dated: November 10, 2022


K.C. Okoli

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Index No.711374/2018

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Defendants
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SUMMONS AND VERIFIED COMPLAINT

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